

Sandeep Singh v. State of U.P. — Provisional assessment to be finalized after hearing

Allahabad High Court · Division Bench · 4 April 2023 · Writ-C No. 9339 of 2023 (All.) · Writ-C No. 9339 of 2023 · **Writ disposed; final assessment after hearing per Supply Code.**

HEADNOTE

A writ challenging a provisional assessment bill dated 18 August 2020 was disposed of after counsel for the Electricity Department stated that the citation issued on that assessment had been withdrawn and that the petitioner would be heard before a final order. The Court granted liberty to pass a final assessment strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, without examining the bill on merits.

FACTUAL SUMMARY

Sandeep Singh filed a writ at the Allahabad High Court challenging a provisional assessment bill dated 18 August 2020 and seeking a direction to decide his representation dated 12 September 2020. Counsel for the Electricity Department stated that the citation issued on that assessment had been withdrawn and that the respondents would hear the petitioner before passing a final order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

final assessment after hearing

HOLDING

Where the citation issued on a provisional assessment is withdrawn, a writ challenging that assessment is disposed of with liberty to the licensee to hear the consumer and pass a final assessment strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

final-assessment-after-hearing-per-supply-code

On withdrawal of the citation issued on the provisional assessment, the Court did not quash or uphold the bill and instead left the licensee to hear the petitioner and pass a final assessment under the Supply Code procedure. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT BILL DATED 18.08.2020

The Court did not examine the assessment on merits after the citation was withdrawn. ¶ 1